

Jamal Abdul Qadir v. Chief Engineer, Vidyut Vitaran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 20 September 2017 · Writ-C No. 43624 of 2017 · Writ - C No. 43624 of 2017 · **Writ disposed of; 50% deposit, clause 6.5 complaint on merits, supply restored within three days of deposit.**

HEADNOTE

A writ to settle an electricity billing dispute and restore supply was disposed of without examining the demand. Recording the consumer's offer to deposit 50% of the bill dated 4.9.2017 after credit for sums already paid, the Court directed that a complaint under clause 6.5 of the Electricity Supply Code, 2005, raised within two weeks of that deposit, be considered on merits in accordance with law; failing which the licensee may recover the entire demand. Upon the 50% deposit, the connection was to be restored within three days.

FACTUAL SUMMARY

Jamal Abdul Qadir filed a writ against the Chief Engineer of the Vidyut Vitaran Nigam and other officers, seeking mandamus over a billing dispute and restoration of supply. The demand was a bill dated 4 September 2017. The petition was first listed as a recovery matter; a Division Bench found no recovery proceedings on record and sent it to the appropriate roster. Before the Chief Justice, counsel offered to deposit 50% of the demand, after deducting sums already paid, within two weeks.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-complaint

HOLDING

Without deciding the bill, the Court recorded the consumer's undertaking to deposit 50% of the demand dated 4.9.2017 (after credit for amounts already paid) within two weeks. A dispute raised under clause 6.5 of the Electricity Supply Code, 2005 within two weeks of that deposit is to be considered and dealt with on merits in accordance with law expeditiously; if no such dispute is raised, the licensee may recover the entire amount. Upon the 50% deposit, the electricity connection is to be restored within three days. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS AND QUANTUM OF THE ELECTRICITY BILL DATED 4.9.2017

Left to be considered on merits under clause 6.5 of the Supply Code, 2005. ¶ 1